



CHAPTER 21.

An Act to make temporary provision for enabling allied and associated Powers to establish and maintain in the United Kingdom Maritime Courts for the trial and punishment of certain offences committed by persons other than British subjects; to provide for the trial and punishment by British courts of similar offences committed by British subjects; and for purposes connected with the matters aforesaid.

[22nd May 1941.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows :—

1.—(1) During the continuance in force of this Act, it shall be lawful for any Power to which this Act applies to establish and maintain in the United Kingdom courts of justice, to be called Maritime Courts, having such criminal jurisdiction as is conferred on them by this Act.

Constitution
of allied
Maritime
Courts in
the United
Kingdom.

(2) His Majesty may by Order in Council direct that this Act shall apply to any Power allied with His Majesty or to any Power for the time being at war with any other Power with which His Majesty is for the time being at war, and references in the following provisions of this Act to any Power shall be construed as references to a Power to which this Act applies.

(3) Subject to the provisions of this Act, the Maritime Courts of any Power shall be constituted, and the practice and procedure of those courts shall be regulated, in accordance with the law of that Power.

(4) A Secretary of State may at the request of any Power publish in the Gazettes notice of the establishment of any

Maritime Court established by that Power and of the constitution and membership of the court, and may, at the like request and in the like manner, publish notice of the cancellation or modification of any previous notice; and where it is shown that any proceeding purporting to be a proceeding of a Maritime Court of any Power was taken by or before a court which was constituted in accordance with the terms of any such notice for the time being in force relating to the courts of that Power, that proceeding shall be conclusively presumed to be a proceeding of a Maritime Court lawfully constituted in accordance with the law of that Power and having the jurisdiction conferred on such courts by this Act.

(5) The members of a Maritime Court when exercising jurisdiction by virtue of this Act, and all persons taking part in any judicial proceedings of such a court, shall enjoy the like immunities and privileges as are enjoyed respectively by a superior court of record of the United Kingdom and by persons taking part in the judicial proceedings of such a court.

14 & 15 Vict.
c. 99.

(6) So much of section seven of the Evidence Act, 1851, as relates to the proof of the judicial proceedings of courts of justice in foreign states shall apply in relation to the proceedings of a Maritime Court as if that court were established in a foreign state.

(7) A Secretary of State may by order direct that any officer of a Maritime Court specified in the directions shall have all the powers, immunities and privileges of a constable within the precincts of the court, and in relation only to a person delivered into his custody by virtue of a warrant issued under this Act outside those precincts also.

Jurisdiction
of Maritime
Courts.

2.—(1) Subject to the provisions of this Act, the Maritime Courts of any Power shall have jurisdiction to try persons, not being British subjects, for any of the following acts or omissions constituting offences against the law of that Power, that is to say:—

- (a) any act or omission committed by any person on board a merchant ship of that Power:
- (b) any act or omission committed by the master or any member of the crew of a merchant ship of that Power in contravention of the merchant shipping law of that Power:
- (c) any act or omission committed by any person who is both a national of that Power and a seaman of that Power as defined by this Act, in contravention of the mercantile marine conscription law of that Power:

Provided that the Maritime Courts of any Power shall not have jurisdiction to try any person for any act or omission committed before the date of the passing of this Act except an act

or omission committed at any time not more than six months before that date and constituting an offence against some law of that Power in force at that time other than the merchant shipping law and mercantile marine conscription law thereof.

(2) A Maritime Court shall not have jurisdiction to try any person for any such act or omission unless he has been required to appear before that court for trial by means of a summons issued under this Act and served on him in accordance with rules made thereunder, or has been brought before that court for trial by means of a warrant for his arrest issued under this Act.

(3) A Maritime Court shall not have jurisdiction to try any person for any act or omission constituting or forming part of an offence of which he has been acquitted or convicted by or before any British court.

(4) If the law of any Power makes provision for the proceedings of Maritime Courts established by that Power being subject to appeal to any superior court established by that Power, any such superior court shall have such appellate jurisdiction in relation to matters within the jurisdiction of Maritime Courts as may be conferred by that law, and, except where the context otherwise requires, references in this Act to a Maritime Court shall be construed as including references to any such superior court as aforesaid.

3.—(1) Nothing in this Act shall deprive any British court of jurisdiction in respect of any act or omission constituting an offence against the law of any part of His Majesty's dominions. Saving for jurisdiction of British courts.

(2) If any person convicted of an offence by or before any British court having jurisdiction in the United Kingdom is proved to have been sentenced by a Maritime Court in respect of any act or omission constituting or forming part of that offence, the British court shall in awarding punishment for the offence have regard to any punishment imposed on him in respect of that act or omission by the sentence of the Maritime Court.

4.—(1) Where any act or omission constituting an offence against the law of any Power is committed after the passing of this Act by a British subject on board a merchant ship of that Power and a like act or omission would, if committed on board a British ship, have constituted an offence against any provision of the law of the United Kingdom, the act or omission shall constitute an offence against that provision. Offences by British subjects.

(2) Where any act or omission constituting an offence against the merchant shipping law of any Power is committed after the passing of this Act by the master or a member of the crew of a merchant ship of that Power who is a British subject and a like

act or omission would, if committed by the master or a member of the crew of a British ship, have constituted an offence against any provision of the merchant shipping law of the United Kingdom, the act or omission shall constitute an offence against that provision.

Institution of
proceedings
before
Maritime
Courts.

5.—(1) Where it appears to a justice of the peace, on information on oath laid before him by a person authorised by any Power to institute proceedings before the Maritime Courts of that Power (hereinafter referred to as an "authorised prosecutor") that it is intended to charge any person before such a court, the justice shall, if he is satisfied that the form and contents of the information comply with the prescribed requirements, either issue a summons to the person to be charged requiring him to appear before the Maritime Court at such time and place as may be specified in the summons, or issue a warrant for his arrest requiring him to be brought before that court :

Provided that a warrant for the arrest of any person shall not be issued by a justice under this subsection unless it appears to him that, having regard to the gravity of the charge or to the urgency of the case, it is expedient that the person to be charged should be arrested forthwith, or that he is unlikely to attend before the Maritime Court without being compelled so to do.

(2) Where it appears to a justice of the peace, on information on oath laid before him, that any person required by a summons issued under this section to appear before a Maritime Court has failed to comply with the requirements of the summons, or that any person bound by any undertaking given by him to a Maritime Court to appear before that court has failed to comply with that undertaking, the justice shall, unless it appears to him that there was reasonable excuse for the failure, issue a warrant for the arrest of that person requiring that he be brought before the Maritime Court.

Provisions for
compelling
attendance of
witnesses
before Mari-
time Courts.

6.—(1) Where it appears to a justice of the peace, either on the production of a certificate issued by a Maritime Court, or on information on oath laid before him by any person, that any person is wanted as a witness in connection with any proceedings before that court (whether for the prosecution or for the defence), the justice shall issue a summons to that person requiring him to attend before the Maritime Court as a witness :

Provided that where it appears to the justice, on such an information as aforesaid, that the person so wanted is unlikely to attend before the Maritime Court without being compelled so to do, he may, in lieu of issuing such a summons, issue a warrant for the arrest of that person requiring him to be brought before the Maritime Court as a witness.

(2) A summons or warrant issued under this section requiring any person to attend or to be brought before a Maritime Court as

a witness in connection with any proceedings shall require him so to attend or be brought at such time and place as may be specified in the summons or warrant and at any adjourned hearing of those proceedings unless and until he is released from attendance by the Maritime Court, either absolutely or subject to any undertaking given to that court.

(3) A summons issued under this section requiring any person to attend before a Maritime Court as a witness in connection with any proceedings shall require him to bring with him any articles in his possession or power which he has reasonable cause to believe to be wanted as evidence before that court in connection with those proceedings, and in particular such articles if any as may be specified in the summons.

(4) If any person fails without reasonable excuse to comply with any requirement of a summons issued under this section and served on him in accordance with rules made under this Act, he shall be guilty of an offence and liable on conviction under the Summary Jurisdiction Acts to a fine not exceeding one hundred pounds or to imprisonment for a term not exceeding three months or to both such fine and such imprisonment; and where any person is convicted of an offence under this subsection in respect of his failure to attend before a Maritime Court, the court by which he is convicted may, without prejudice to any punishment imposed on him for that offence, direct that he be brought before the Maritime Court as a witness, and commit him to custody until he is so brought.

7.—(1) A Maritime Court shall have power to order the detention of, or to impose a fine on, any person, not being a British subject, who is guilty of contempt of court committed before that court. Provisions as to contempt of Maritime Courts.

(2) If any British subject commits before any Maritime Court any act or omission which would, if it had been committed before a British court of record in that part of the United Kingdom in which the Maritime Court was established, have been punishable by the British court as a contempt of court, he shall be guilty of an offence, and liable on conviction under the Summary Jurisdiction Acts to a fine not exceeding one hundred pounds or to imprisonment for a term not exceeding three months, or to both such fine and such imprisonment.

8.—(1) A certificate in the prescribed form issued by a Maritime Court certifying that any person has been sentenced by that court to detention, or ordered by that court to be detained for contempt of court or pending the determination of any proceedings against him before that court, shall be a sufficient warrant for the detention of that person in any prison or other place of detention in the United Kingdom, being a prison or place sanctioned in that behalf by a Secretary of State in accordance with arrangements made by him with the Detention for purposes of Maritime Courts, and recovery of fines and forfeitures.

government of the Power by which that court was established, and for the conveyance of that person to any such prison or place, and in the case of a person not already in custody for the apprehension of that person for the purpose of his being so conveyed.

(2) Where any person is detained by virtue of an order of a Maritime Court in any prison in the United Kingdom, then, subject to the provisions of any regulations made under this section, the provisions of any Act, regulation, rule, or order, relating to the treatment of persons in such a prison, and any such provisions relating to the manner in which such persons are to be dealt with in the event of their unsoundness of mind, shall apply to him—

- (a) in the case of a person sentenced by a Maritime Court to detention for a term of three years or more, as if he had been sentenced to penal servitude for that term by a British court having jurisdiction in the United Kingdom ;
- (b) in the case of a person sentenced by a Maritime Court to detention for a term of less than three years, as if he had been sentenced to imprisonment for that term, or for terms amounting in the aggregate to a period equal to that term, by such a British court as aforesaid ;
- (c) in the case of a person ordered to be detained pending the determination of proceedings against him before a Maritime Court, as if he were a prisoner awaiting trial before such a British court as aforesaid ; and
- (d) in the case of a person ordered by a Maritime Court to be detained for contempt of court, as if he had been ordered to be imprisoned for contempt of such a British court as aforesaid.

(3) Where any person, being a national of any Power by which Maritime Courts are established under this Act, has been sentenced by a Maritime Court of that Power to detention for a term of one year or more, he may, under the authority of an order of the Maritime Court, be transferred to any place within the territory of that Power (not being territory in the occupation of any Power with which His Majesty is for the time being at war) there to serve the whole or any part of his sentence ; and for that purpose any such person may, under the authority aforesaid, be removed to and conveyed aboard any ship of that Power or any British ship :

Provided that no person shall be so transferred, removed, or conveyed under the order of a Maritime Court unless the order has been endorsed with a certificate of a Secretary of State certifying that, having regard to the limitations imposed by rules of court upon the time within which proceedings for that

purpose may be taken, the jurisdiction of the Maritime Court to try him is no longer open to question under the provisions of this Act, and, in the case of an order authorising removal to and conveyance aboard a British ship, that the ship may be used for that purpose.

(4) A fine imposed upon any person by a Maritime Court of any Power, and any sum ordered by such a court to be paid by any person in respect of the costs of any proceedings against him before that court, or to be forfeited by way of penalty for breach of any undertaking given to that court shall, without prejudice to any remedy under the law of that Power, be recoverable summarily as a civil debt by the government of that Power.

(5) The arrangements made by a Secretary of State with the government of any Power for the purposes of subsection (1) of this section may make provision—

- (a) as to the reception from Maritime Courts of that Power of persons to be detained under this Act, and as to the release of persons so detained ; and
- (b) as to the payment of any costs incurred in connection with the apprehension, conveyance, or detention or imprisonment of persons for the purposes of or in connection with proceedings before those courts under this Act.

(6) A Secretary of State may make regulations as to the apprehension, conveyance, custody, treatment, and release of any persons detained or ordered to be detained under this Act, and, in particular—

- (a) as to the manner in which such persons are to be brought before local tribunals or Maritime Courts ;
- (b) as to the time during which such persons may continue to be detained under this Act before trial ;
- (c) as to the conveyance, custody and treatment within the United Kingdom or on board any British ship of persons ordered to be transferred to the territory of any Power under the foregoing provisions of this section ;

and such regulations may direct that any provisions of any Act, regulation, rule, or order relating to the detention of prisoners or other like matters shall apply with respect to the apprehension, conveyance, custody, treatment, and release of such persons as aforesaid either without modifications or with such modifications and adaptations as may be provided by the regulations.

(7) Any person apprehended, detained, removed, or conveyed in accordance with the provisions of this Act or of any regulations made thereunder shall be deemed to be in lawful custody.

9.—(1) If any person who has been required to appear or to be brought before a Maritime Court for the purpose of being tried by such a court, or who has been ordered by such a court to be

Determination
of claims to
British
nationality.

punished for contempt of court, claims to be a British subject, he may apply to have that claim determined by a local tribunal ; and where any claim has been so determined, the determination of the tribunal shall be final and conclusive for all the purposes of this Act but not for any other purpose.

(2) Such local tribunals as aforesaid shall be constituted, and proceedings in connection with the determination of such claims as aforesaid shall be regulated, in accordance with the provisions of the Schedule to this Act and of any rules made under this Act.

(3) Where the claim of any person to be a British subject is allowed by a local tribunal, all proceedings connected with his trial or punishment by a Maritime Court shall be void, except that the determination of the tribunal shall be conclusive for the purposes of any proceedings which may be taken against him in a British court in respect of any act or omission in respect of which British subjects are punishable under this Act.

Rules.

10.—(1) The Lord Chancellor may make rules with respect to proceedings under this Act by and before justices of the peace and local tribunals and with respect to the execution of process issued for the purposes of this Act, and without prejudice to the generality of the power hereby conferred, such rules may in particular make provision—

- (a) as to proof of the identity and authorisation of authorised prosecutors and of clerks and other officers of Maritime Courts either by means of certificates or otherwise ;
- (b) as to the form and contents of any information, summons, warrant, or other document to be issued in connection with proceedings under this Act by and before justices and local tribunals ;
- (c) as to the service of summonses and other documents under this Act, and as to the time before the return day by which such summonses must be served ;
- (d) as to the execution of warrants issued for the purposes of this Act ;
- (e) as to the admission to bail of any person pending his appearance or attendance before a local tribunal or a Maritime Court ;

and such rules may direct that any provisions of any Act, regulation, rule, or order relating to like matters shall apply with respect to procedure and practice under this Act, either without modifications or with such modifications and adaptations as may be provided by the rules.

(2) The rules made under this section shall make such provision as the Lord Chancellor thinks proper for securing that any

person required to appear or to be brought before a Maritime Court for trial by that court shall, at or as soon as may be after the time of the service upon him of the summons or of his arrest as the case may be, be notified that British subjects are not subject to the jurisdiction of Maritime Courts, and be informed as to the procedure to be adopted by any person claiming to be a British subject.

11.—(1) The decision by a Maritime Court of any Power of any question within the jurisdiction conferred on such courts by this Act shall not be subject to any appeal except such as may be provided for by the law of that Power, and, save as expressly provided by this Act, the proceedings of a Maritime Court shall not be restrained or reviewed by any British court.

Finality of
decisions
of Maritime
Courts.

(2) If any person claims that in any proceedings connected with the trial of any person convicted by a Maritime Court, or with the punishment of any person by such a court for contempt of court, the jurisdiction conferred by this Act has been exceeded, he may, with the leave of the Maritime Court or of the High Court, apply to the High Court in accordance with rules of court for a declaration to that effect:

Provided that, where the application is proposed to be made on the ground that the person convicted or punished was a British subject, leave shall not be given by the High Court unless it appears to that Court that, by reason of some cause other than the neglect or default of that person, the question of his nationality has not been determined by a local tribunal.

(3) In any proceedings in the High Court upon an application made to that Court under this section—

(a) no determination made by the Maritime Court shall be called in question except so far as may be necessary for the determination of the question whether the jurisdiction of that court has been exceeded; and

(b) any determination whether expressed or implied in the judgment of the Maritime Court upon any question falling to be determined according to the law of the Power by which that court was established shall be conclusive evidence of that law.

(4) Where a declaration is made by the High Court that in any proceedings connected with the trial or punishment of any person by a Maritime Court the jurisdiction conferred by this Act has been exceeded, all proceedings connected with the trial or punishment of that person by the Maritime Court, except any determination by a local tribunal as to his nationality, shall be void.

Indemnity for acts done in purported exercise of jurisdiction.

12. Anything done in good faith and in purported exercise of the powers conferred by this Act for the purpose of or in connection with the trial or punishment of any person by a Maritime Court shall not be deemed to have been unlawfully done by reason only that he was not subject to the jurisdiction of the Maritime Court or that the jurisdiction of that court was exceeded.

Expenses of tribunals.

13. All expenses incurred in connection with the establishment of local tribunals or arising out of any jurisdiction exercisable by such tribunals shall be defrayed out of moneys provided by Parliament.

Provision as to colonies, &c.

14. His Majesty may by Order in Council direct that this Act shall extend, subject to such exceptions, adaptations and modifications as may be specified in the Order—

- (a) to any colony ;
- (b) to any British Protectorate ;
- (c) to any territory in respect of which a mandate on behalf of the League of Nations has been accepted by His Majesty, and is being exercised by His Majesty's government in the United Kingdom.

Power of Minister of War Transport to order certain ships to be treated as ships of any Power.

15.—(1) Where the Minister of War Transport is satisfied that, in pursuance of any arrangements made on behalf of His Majesty with the government of any Power, any British ship is to be wholly or mainly manned by nationals of that Power, the Minister may by order direct that, for the purposes of all or any of the provisions of this Act, that ship shall be treated as if she were a ship of that Power ; and references in the foregoing provisions of this Act to a merchant ship of that Power shall be construed as including a reference to any ship specified in such an order notwithstanding that she remains a British ship.

(2) Any order made for the purposes of this section shall be published in the Gazettes.

Provisions as to Orders in Council, orders, rules, and regulations.
52 & 53 Vict.
c. 63.

16.—(1) Any Order in Council or order made under the foregoing provisions of this Act may be revoked by a subsequent Order in Council or order, as the case may be :

Provided that, on the revocation of any such Order in Council or order, section thirty-eight of the Interpretation Act, 1889 (which relates to the effect of repeals) shall apply with respect to the effect of the revocation of the Order in Council or order in like manner as it applies with respect to the effect of the repeal of Acts passed after the commencement of that Act.

(2) Every Order in Council made under this Act shall be laid before Parliament as soon as may be after it is made.

(3) All rules and regulations made under this Act shall be laid before Parliament as soon as may be after they are made, and if either House, within the period of forty days beginning with the day on which any such rules or regulations are laid before it, resolves that the rules or regulations be annulled, the rules or regulations shall henceforth become void, but without prejudice to the validity of anything previously done thereunder or to the making of any new rules or regulations.

In reckoning any such period of forty days, no account shall be taken of any time during which Parliament is dissolved or prorogued or during which both Houses are adjourned for more than four days.

(4) Section one of the Rules Publication Act, 1893, shall not apply to any Order in Council, rules, or regulations made under this Act. 56 & 57 Vict.
c. 66.

17.—(1) In this Act the following expressions have the meanings hereby respectively assigned to them, that is to say— Interpretation.

“ British subject ” includes a British protected person ;

“ Contempt of court ” means, in relation to a Maritime Court of any Power, any act or omission which under the law of that Power is punishable by that court in like manner as contempt of court is punishable by a British court of record ;

“ Detention ” includes any form of imprisonment or detention ;

“ Gazettes ” means the London, Edinburgh, and Belfast Gazettes ;

“ Mercantile marine conscription law ”, in relation to any Power, includes any law imposing compulsory service on nationals of that Power in so far as it relates to such service in merchant ships of that Power or in merchant ships which by virtue of any order made under this Act are to be treated as if they were ships of that Power ;

“ Merchant shipping law ” does not include any law imposing compulsory service in merchant ships, but save as aforesaid, means any law relating to merchant shipping, including any law making special provision for the punishment of offences committed by masters or members of the crews of merchant ships ;

“ Prescribed ” means prescribed by rules or regulations made under this Act ;

“ Return day ”, in relation to any summons, means the day on which the person summoned is required by the summons to appear ;

"Seaman of that Power" means, in relation to any Power, a person who, since the third day of September nineteen hundred and thirty-four, has been employed or engaged on board ships of that Power, either as master or as member of the crew, or partly in the one way and partly in the other, for a period of six months or more, or for periods amounting in the aggregate to not less than six months.

(2) For the purposes of this Act, all vessels which according to British law are deemed to be British ships and all vessels which according to the law of any Power are deemed to be ships of that Power shall be deemed to be British ships and to be ships of that Power respectively.

(3) For the avoidance of doubt it is hereby declared that any question whether a ship of any Power, or which by virtue of any order made under this Act is to be treated as if she were a ship of any Power, is a merchant ship shall be determined in accordance with the law of that Power.

(4) References in this Act to the law of any Power shall be construed as references to any such law for the time being in force by virtue of any Act, order, proclamation, or other legislative instrument whatsoever of the government of that Power, whether passed, issued, or made before or after the commencement of this Act, and, in the case of a Power the government of which is for the time being constituted in the United Kingdom, or in any territory to which this Act can be extended by Order in Council, whether before or after that government was so constituted.

Application to
Scotland.

18. This Act shall in its application to Scotland have effect subject to the following modifications:—

- (a) for the reference in paragraph 4 of the Schedule to the Lord Chancellor there shall be substituted a reference to the Secretary of State and for any reference elsewhere in this Act to the Lord Chancellor there shall be substituted a reference to the Lord Justice General;
- (b) for references to the High Court there shall be substituted references to the High Court of Justiciary;
- (c) for the reference to a judge of county courts there shall be substituted a reference to a sheriff-substitute, and for the reference to a county court there shall be substituted a reference to a sheriff court;
- (d) for references to a justice of the peace, and to a summons there shall be substituted respectively references to the sheriff and to an order;
- (e) subsection (5) of section one shall have effect as if for the reference to a superior court of record of the United

Kingdom there were substituted a reference to the High Court of Justiciary ;

- (f) subsection (2) of section seven shall have effect as if for the reference to a British court of record there were substituted a reference to the High Court of Justiciary ;
- (g) subsection (4) of section eight shall have effect as if the word " summarily " were omitted ; and
- (h) paragraph 1 of the Schedule shall have effect as if for the words " be a court of record " there were substituted the words " have for the purpose aforesaid the like powers regarding punishment for contempt of court, award of expenses and the issue of extracts, as a sheriff court ".

19. This Act shall in its application to Northern Ireland have effect subject to the following modifications :—

Application to
Northern
Ireland.

- (a) for references to the Lord Chancellor there shall be substituted references to the Lord Chief Justice of Northern Ireland ;
- (b) subsection (6) of section eight shall have effect as if for the reference to a Secretary of State there were substituted a reference to the Minister of Home Affairs.

20.—(1) This Act may be cited as the Allied Powers (Maritime Courts) Act, 1941.

Short title,
duration and
extent.

(2) This Act shall continue in force until the expiry of the Emergency Powers (Defence) Act, 1939, and shall then expire :

2 & 3 Geo. 6.
c. 62.

Provided that on the expiration of this Act subsection (2) of section thirty-eight of the Interpretation Act, 1889 (which relates to the effect of repeals) shall apply as if this Act had then been repealed.

(3) It is hereby declared that this Act extends to Northern Ireland.

Sections 9, 18.

SCHEDULE.

DETERMINATION OF CLAIMS TO BRITISH NATIONALITY.

Constitution of Local Tribunals.

1. There shall be established at such places as may be determined by the Lord Chancellor local tribunals for the purpose of determining the claims of persons who claim to be exempt from the jurisdiction of Maritime Courts as British subjects, and every such tribunal shall be a court of record.

2. Every local tribunal shall consist of a single person appointed by the Lord Chancellor and a person so appointed shall hold office upon such terms as may be determined by the Lord Chancellor at the time of his appointment.

3. A person shall not be qualified to be appointed to be a local tribunal unless he is a judge of county courts or a person qualified to be appointed to be such a judge.

4. The Lord Chancellor may, with the concurrence of the Treasury as to numbers and salaries, appoint in connection with any local tribunal such officers as he considers necessary for the purpose of carrying out the work of the tribunal and may from time to time direct what duties shall be performed by those officers and may if he thinks fit remove any such officer from his office.

Applications for determination of claims and admission to bail.

5. Except in a case where the applicant has been ordered by a Maritime Court to be punished for contempt of court, an application for the determination by a local tribunal of the claim of any person to be a British subject shall not be made after he has appeared or been brought before a Maritime Court without the leave of that court.

6. An application for the determination by a local tribunal of the claim of any person to be a British subject may be made, in the prescribed manner, to the officer in charge of any police station or to the governor of any prison, and upon such an application being so made it shall be the duty of that officer or governor, in accordance with rules made under this Act, to transmit the claim to the tribunal.

7. Where an application has been duly made by any person to have his claim to be a British subject determined by a local tribunal, then, until after the determination of the claim by the tribunal—

- (a) in the case of a person who has been required to appear or to be brought before a Maritime Court for the purpose of being tried by such a court, he shall not be required so to appear or to be brought ;

(b) in the case of a person ordered by a Maritime Court to be detained for contempt of court, he shall be treated as if he had been remanded in custody ;

(c) in the case of a person ordered by a Maritime Court to be fined for contempt of court, the fine shall not be recoverable.

8. Provision shall be made by rules made under this Act for giving to any person by whom such an application as aforesaid has been made, and to the authorised prosecutor by whom proceedings were instituted against him, or in a case where the applicant has been ordered by a Maritime Court to be punished for contempt of court to the clerk of that court, notice of the time and place at which the claim will be determined by the tribunal ; and provision shall be made by such rules for empowering any officer of police of a rank not below that of inspector and any justice of the peace to admit any such applicant who is in custody to bail pending the determination of his claim.

Proceedings by Local Tribunals.

9. Rules made under this Act may authorise the giving of evidence by affidavit upon proceedings before local tribunals, and, subject as hereinafter provided, such rules may authorise local tribunals to determine applications submitted to them after taking into consideration documentary evidence only :

Provided that the applicant, the authorised prosecutor by whom proceedings against the applicant were instituted, or, in a case where the applicant has been ordered by a Maritime Court to be punished for contempt of court, the clerk of that court, shall be entitled to require a hearing to be held and shall be afforded an opportunity to apply therefor, and shall, upon the hearing being held, be entitled to appear and be heard thereat.

10. If a local tribunal, after considering the evidence submitted to it with respect to the claim of any person to be a British subject, is satisfied that the claim is substantially established, the tribunal may allow the claim notwithstanding that the evidence is not in the opinion of the tribunal conclusive.

11. Where the claim of any person to be a British subject is disallowed by a local tribunal, then—

(a) in the case of a person who has been required to appear or to be brought before a Maritime Court for the purpose of being tried by such a court, the tribunal shall by order give directions as to the time and place at which he shall so appear or be brought, and, in the case of a person for whose arrest a warrant has been issued, as to his custody or release on bail in the meanwhile ;

(b) in the case of a person ordered by a Maritime Court to be punished for contempt of court, the tribunal shall by order give such directions as may be necessary for giving full effect to the order of the Maritime Court.

12. (1) Where the claim of any person to be a British subject is allowed by a local tribunal and the tribunal is satisfied that the applicant has incurred substantial travelling or subsistence expenses

in connection with the determination of his claim, the tribunal may, if it thinks fit, order payment to him of such expenses, by the prescribed officer in accordance with the prescribed scale.

(2) Where the claim of any person to be a British subject is disallowed by a local tribunal, the tribunal may, if of opinion that the claim was frivolous and made for the purpose of obstruction or delay, order the applicant to pay to the prescribed officer such contribution towards the expenses of the tribunal not exceeding five pounds as to the tribunal seems just, and, in default of the payment of any sum so ordered to be paid, payment thereof shall be enforced as if the order were an order made by a county court for the payment of fees.

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